DA-AGREEMENT/CONTRACT
NO. 02132023 - 21

MEMORANDUM OF AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This Memorandum of Agreement is made and entered into by and between:

The **DEPARTMENT OF AGRICULTURE,** an agency of the executive department responsible for the promotion of agricultural and fisheries development and growth, together with the **ACEF EXECUTIVE COMMITTEE,** the committee created by RA 10848 to promulgate new policies and guidelines relative to the utilization of the Agricultural Competitiveness Enhancement Fund (ACEF), both with principal office address at Elliptical Road, Diliman, Quezon City, represented herein by **DOMINGO F. PANGANIBAN** as Senior Undersecretary, Department of Agriculture and Chair, ACEF EXECOM and hereinafter referred to as **DA/ACEF EXECOM**

and

The **PARTIDO STATE UNIVERSITY,** a state institution of higher learning duly organized and created under the laws of the Republic of the Philippines, with principal office address at San Juan Bautista St., Goa, Camarines Sur, represented herein by its **President, RAUL G. BRADECINA, Ph.D.,** and hereinafter referred to as **ParSU**.

WITNESSETH:

Whereas, the **Department of Agriculture** is the principal government agency mandated to develop the agriculture and fisheries sectors in the country through the provision of adequate and appropriate support services;

Whereas, under R.A. 10848, otherwise known as the ACEF Extension Law, ten percent (10%) of the ACEF was allocated as grant to fund R&D activities of qualified State Universities and Colleges (SUCs) on various agricultural and fishery products and the commercialization of such, including the upgrading of research facilities;

Whereas, under of RA 10848, the grants for research and development shall not exceed Php 5,000,000 per project;

Whereas, under Section 1, E, (2)(b)(2) of the Implementing Rules and Regulations (IRR) of RA 10848 set forth the technical criteria for research facilities development;

Whereas, ACEF Executive Committee is created to ensure the attainment of the objectives of the ACEF, and to promulgate the policies and guidelines necessary for the planning, administration, coordination and monitoring of the utilization of the Fund.

Whereas, DA/ACEF EXECOM has the financial resources to support the research and development proposal of **ParSU** as contained in the attached Detailed Project Proposal as Attachment A of this Memorandum of Agreement, hereinafter referred to as the Agreement, for brevity.

Whereas, ParSU possesses the technical expertise and manpower to undertake the research and development project as contained in the attached Detailed Project Proposal.

Whereas, the **DA/ACEF EXECOM** and **ParSU** agree to enter into this agreement in implementing the attached Detailed Project Proposal; and

Whereas, the Parties are duly empowered to enter into, sign and execute this Memorandum of Agreement in behalf of their respective organizations.

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NOW, THEREFORE, in consideration of the above premises, the parties mutually agree on the following:

Article 1
TITLE OF THE PROJECT

The project is entitled "**UPGRADING OF TISSUE CULTURE LABORATORY FACILITY IN PARTIDO STATE UNIVERSITY AT SALOGON CAMPUS**" hereinafter referred to as the "**PROJECT**."

Article 2
PROJECT

Section 1. *Bases for Implementation.* – **ParSU** shall strictly implement the project in accordance with the approved project proposal as contained in the attached **Detailed Project Proposal** which shall form an integral part of this Agreement.

Section 2. *Modifications.* - No modification of the project proposal or any deviation in the implementation thereof shall be allowed without the written consent of **DA/ACEF EXECOM**.

Section 3. *Assignment of rights.* – No part of the project including any rights thereto maybe transferred, assigned or subcontracted to third parties, without the written consent of **DA/ACEF EXECOM**.

Section 4. *Project Implementation Plan.* - The schedule for the implementation of the project shall be set forth in the *Project Implementation Plan* which shall form an integral part of this Agreement. The project shall be completed within one (1) year and shall commence immediately or within 3 months after the receipt of funds and Notice to Proceed (NTP). However, in case there is a change in the actual date of implementation or there is a need for extension of project duration due to causes beyond the control of and without the fault or negligence of the **ParSU**, a written request for such change or extension shall be sent to the **DA/ACEF EXECOM**. Such a written request must be made by the **ParSU** within a reasonable time after the occurrence of the event giving rise to the delay, but in no case later than 60 days prior to the expiration of the approved project term. Delay or deviation in the implementation schedule of the project based on the *Project Implementation Plan* shall not be allowed without the written consent of **DA/ACEF EXECOM**.

Article 3
FUNDING, FINANCIAL RECORDS & REPORTS

Section 1. *Provision of funds.* – The **DA/ACEF EXECOM** shall provide the project funds in the total amount of **ONE MILLION FIVE HUNDRED NINETY-NINE THOUSAND FOUR HUNDRED SEVENTY-FOUR PESOS AND FIFTY CENTS ONLY (PhP 1,599,474.50),** for the project for a period of **one (1) year** in accordance with the provisions of the following sections.

Section 2. *Accounting & auditing standards.* - All fund releases of the project shall be subject to existing standards of accounting and auditing laws, rules and regulations of the government. It shall also conform with the provisions of the Commission on Audit Circular No. 94—013 as amended (Rules and Regulation in the Grant, Utilization and Liquidation of Funds Transferred to Implementing Agencies), and Commission on Audit Circular No. 2012-

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BERNADETTE E. TALUDAN
Administrative Officer V
DA-Records Division
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001, s. 12 (Prescribing the Revised Guidelines and Documentary Requirements for Common Government Transactions) on the grant, utilization and liquidation of funds released.

Section 3. *Fund Disbursement and Utilization.* – In the course of implementation of the project, the **ParSU** shall be responsible and accountable for the direct disbursement of the funds in accordance to the project's approved Line Item Budget (LIB). Request for necessary reprogramming or realignment of funds shall be allowed after six (6) months of implementation and not to exceed two (2) times in each implementation year. Any unutilized amount after the completion of the project implementation shall be returned to the **DA ACEF account** within 30 days upon project completion supported with appropriate financial documents and justification/s.

Section 4. *Forms and documents for reports.* - The **ParSU** shall accomplish such forms and prepare such documents as required by the **DA/ACEF EXECOM** in accordance with the attached **SCHEDULE OF RELEASE & OUTPUTS** as Attachment B for monitoring and record-keeping purposes, in compliance with Section 1 E (2) b(3) of the IRR of Ra 10848 and as provided in Attachment B hereof.

Section 5. *Financial records* – The **ParSU** shall account for funds provided under this Agreement and shall keep and maintain financial records in accordance with accepted standards, principles and practices in accounting, in compliance with Section 1 E (2) b(3) of the IRR of Ra 10848 and as provided in Attachment B hereof.

Section 6. *Right to inspect financial records* – The **DA/ACEF EXECOM** shall have the right to inspect and audit all financial records kept by the **ParSU** related to the project at any time during and after the implementation of the project. The **ParSU** shall make all records available upon demand thereof by **DA/ACEF EXECOM**.

Section 7. *Termination/Deferment of Project and Return of fund release* – The **DA/ACEF EXECOM** reserves the right to terminate this Agreement at any stage on any of the following grounds:

1. Abandonment or withdrawal from the grant;
2. Substantial negative variance, as determined by the **DA/ACEF EXECOM**, between actual accomplishments vis-à-vis the planned work for a given period as contained in Attachments A and B;
3. Outside of force majeure, fails to deliver or perform any or all of the project's objectively verifiable indicators specified in the project proposal, or within any extension thereof granted by **DA/ACEF EXECOM** pursuant to a request made by **ParSU** prior to the delay;
4. Non-compliance with the reportorial and liquidation requirements;
5. Refusal to allow **DA/ACEF EXECOM** representatives to inspect and audit the progress of the project.
6. Failure to produce financial records upon demand by the **DA/ACEF EXECOM**.
7. The **ParSU** does not actually have on the project site any of the capital/equipment outlay necessary to conduct the project in accordance with the approved project proposal;
8. The **ParSU** does not execute the project activities in accordance with the approved project proposal or flagrantly neglects to carry out its obligations under the MOA; and
9. The **ParSU** fails to perform any other obligation under the MOA; and

The **Project Leader** shall have shared accountability with the **ParSU** for the above-mentioned reasons.

If any of the foregoing grounds for termination occur, the **DA/ACEF EXECOM** shall have the right to demand the refund of release to **ParSU**, subject to such other sanctions as may

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be prescribed by pertinent rules and regulations of the Department. Furthermore, the **ParSU** shall be disqualified from receiving further grants and support under the ACEF R&D Program.

The **ParSU** shall be notified at least 30 days before the date of termination.

Article 4
PROJECT MANAGEMENT, IMPLEMENTATION, MONITORING & EVALUATION

Section 1. *Project Management and Implementation.* – The **ParSU** shall be responsible for the orderly, systematic and timely implementation of the project based on Attachment A and shall provide an adequate and efficient administrative support and management system necessary for its successful implementation.

Section 2. *Planning, Monitoring and Evaluation.* – **ParSU** shall provide the **DA/ACEF EXECOM** the necessary information and assistance for monitoring and evaluation purposes. Any unforeseen changes in conditions affecting the implementation of the project shall be recorded and reported immediately to **DA/ACEF EXECOM.** The **DA/ACEF EXECOM** shall likewise provide the necessary technical support and assistance, monitor and keep track of the progress of the project implementation and the utilization of the funds in accordance with the approved project proposal; and for this purpose, shall send **DA/ACEF EXECOM** and COA representative/s (if applicable and requested) for field visits and inspections.

Section 3. *Signages.* – **ParSU** shall have signage/s for the project placed within 10 days after the official start date in conspicuous areas preferably in front of the institution and at the project site/s in order to properly acknowledge and give due recognition to the R&D assistance and funding support provided by the Department of Agriculture through **DA/ACEF EXECOM.** Information and items to be placed in the project signage/s are the **DA/ACEF EXECOM** and **ParSU** Logo, Project Title, Funding/Coordinating Agency, Implementing/Collaborating Agency, Project Location, Duration, and Cost.

Section 4. *Terminal Reports.* - In addition to the Audited Financial Report, **ParSU** shall submit a write-up Accomplishment/Terminal Report using the prescribed format and other documents required within thirty (30) days after the completion of the project subject to the final approval thereof by the **DA/ACEF EXECOM**. The **DA/ACEF EXECOM** shall likewise have the right to institute an independent evaluation of the project.

Article 5
BREACH OF CONTRACT

Section 1. *Amicable Settlement.* – In case of breach of contract or when disagreement arises in the interpretation or implementation of the terms and conditions of this **Agreement**, both parties agree to freely and voluntarily submit themselves to necessary consultation and negotiation for purposes of amicable settlement. A good faith effort to settle the dispute amicably shall be made in the following manner:

1. A notice in writing shall be sent by the concerned party to the other party stating therein the basis for the breach or disagreement.
2. The parties shall thereafter set a meeting within 30 days from the date of receipt by one party from the other for the purpose of settling the matter amicably.
3. All agreements shall be reduced in writing and signed by the parties or their duly appointed representatives.

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Section 2. *Administrative remedy*. - If no amicable settlement is reached within sixty (60) days from receipt by the other party of the written notice, the concerned party shall file a complaint before the Office of the Solicitor General or the Secretary of Justice, depending on the nature of the controversy, following the rules of procedure of the said offices for dispute settlement where contending parties are government agencies, bureaus, or government owned and controlled corporations. Alternative legal remedies may likewise be availed of.

Article 6
OTHER PROVISION

Section 1. *Waiver of Liability* – **ParSU** shall hold the **DA/ACEF EXECOM** free from any liability for any delays in the release of the funds due under this Agreement arising from causes that are not attributable to the latter or beyond its control.

Section 2. *Recent Government Issuances* – If grant policies and regulations contained in this Agreement conflict with the recent issuances of the General Appropriations Act and the Commission on Audit, the national government regulations will prevail until amendment is made on this Agreement.

Section 3. *Changes in Provisions*. – In the course of implementation, and as the needs demand, amendment(s) of the MOA shall be made for any change(s) in the provisions.

Section 4. *Separability* – The nullity or illegality of a portion of this MOA shall not render the entire Agreement as invalid.

Article 7
FINAL PROVISION

Section 1. *Attachment*. - Attachment A shall be considered as an integral part of this Agreement. Modifications of any part of the Attachments may be made in accordance with the provisions of Article 2, Section 2 of this Agreement.

Section 2. *Effectivity and termination* - This Agreement shall take effect after the same is duly signed and notarized, and the **ParSU** receives the official **NOTICE TO PROCEED** with the implementation of the project. The Agreement is co-terminus with the approved duration of the project unless otherwise the project was recommended for termination before the project's actual completion, or project extension is granted.

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IN WITNESS WHEREOF, the parties hereto have affixed their respective signatures this 28 DEC 2022, 2022 in QUEZON CITY, Philippines.

DA/ACEF EXECOM

MR. DOMINGO F. PANGANIBAN
Senior Undersecretary, DA and
Chair, DA/ACEF EXECOM

ParSU

DR. RAUL G. BRADECINA
President, ParSU

Signed in the presence of:

MR. FERNANDO D. FLORES
Director, ACEF-PMO

ENGR. JOEL P. SADOL
Project Leader, ParSU

MR. JOELL H. LALES
OIC-Director, DA-BAR

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DR. JENNY P. LORIO
Co- Project Leader, ParSU

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ACKNOWLEDGEMENT

Republic of the Philippines)
QUEZON CITY) S.S.

BEFORE ME, a Notary Public this 2 8 DEC 2022 in QUEZON CITY, Philippines, came to me and personally appeared the following:

Name	ID No.	Issuing
DOMINGO F. PANGANIBAN	006	DA Q.C.
RAUL G. BRADECINA	PSU-0212	PSU

both known to me to be the same persons who executed the foregoing instrument and they acknowledged to me that the same is their own free and voluntary act as well as those of the entities they respectively represent.

I FURTHER CERTIFY this Memorandum of Agreement which consists of seven (7) pages including this page where acknowledgement is written, has been signed by the parties and their instrumental witness on each and every page hereof.

IN WITNESS WHEREOF, I have hereto set my hand and seal on 2 8 DEC 2022, QUEZON CITY, Philippines.

Notary Public

ATTY. ROGELIO J. BOLIVAR
NOTARY PUBLIC OF QUEZON CITY
Commission No. Adm. Matter No. NP 204 (2021-2022)
IBP O.R. No. 132134 MD 2021 & IBP O.R. No. 133076 MD 2022
PTR O.R. No. [illegible] / TIN # 129-571-000
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Book No. XXI;
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Elliptical Road, Diliman
1100 Quezon City

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December 27, 2022

CERTIFICATION

Attached is the certification from Budget Division dated December 27, 2022 that there is earmarked amount of **ONE MILLION FIVE HUNDRED NINETY NINE THOUSAND FOUR HUNDRED SEVENTY FOUR PESOS AND FIFTY CENTAVOS ONLY (₱ 1,599,474.50)** for fund transfer to ***PARTIDO STATE UNIVERSITY (PSU)*** chargeable against the Agricultural Competitiveness Enhancement Fund (ACEF) (310500200002000) under Special Account- Locally Funded/Domestic Grants Fund, Automatic Appropriations with SARO No. BMB-E-22-0010556 dated November 16, 2022 for the funding of the project entitled **"Upgrading of Tissue Culture Laboratory Facility in Partido State University – Salogon Campus"**.

This certification is being issued for whatever legal purpose it may serve.

LOLITA M. JAMELA
OIC - Chief Accountant

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ATTACHMENT B

Schedule of Release & Outputs

Project Title: UPGRADING OF TISSUE CULTURE LABORATORY FACILITY
IN PARTIDO STATE UNIVERSITY AT SALOGON CAMPUS

Release:

The amount of **One Million Five Hundred Ninety-Nine Thousand Four Hundred Seventy-Four Pesos and Fifty Cents Only (PhP 1,599,474.50)**, shall be provided for the project representing the full release of the total budgetary requirement of the project upon execution of the MOA. The release shall be subject to the availability of funds and existing accounting and auditing rules and regulations.

Reports

1. Progress and Financial Report

All proponents are required to submit a Progress and Financial Report duly endorsed by the Agency Head to the **DA/ACEF EXECOM** at most fifteen (15) days after the end of the first semester of project implementation.

The Progress Report shall include all the activities conducted within the period covered. The Financial Report shall indicate the status of funds and shall be signed by the Accountant and verified by a COA Representative.

2. Completion/Terminal and Audited Financial Report

All proponents must submit six (6) copies of the completion/ terminal report and the audited financial report (signed by the Accountant and verified by a COA Representative) duly endorsed by the Agency Head to the **DA/ACEF EXECOM** at most thirty (30) days after the end of the project implementation. The reports shall be evaluated by the Monitoring and Evaluation Team and to be duly accepted by the **DA/ACEF EXECOM** through the issuance of the Certificate of Acceptance.

All undisbursed funds, if any, after the completion of the project implementation shall be returned to **DA ACEF** account. An Official Receipt shall be properly issued to the implementing agency. Acceptable justification/s should be provided for the undisbursed funds.

The proponent shall also submit a brief write-up of the project summarizing the accomplishments/significant results in publishable form.

3. Verifiable Accomplishments

All other outputs indicated in the *Project Implementation Plan* shall be submitted to **DA/ACEF EXECOM** within the period specified. **DA/ACEF EXECOM** or its authorized representatives shall verify accomplishments of the outputs specified therein.

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